

Amendment No. 4 to HB1885

Clemmons
Signature of Sponsor

AMEND Senate Bill No. 2136

House Bill No. 1885*

by deleting subsections (a) and (d) in SECTION 4 and substituting:

(a) If the attorney general and reporter has reasonable cause to believe that a person is more likely than not engaging in, has more likely than not engaged in, or is more likely than not about to engage in an unlawful act or practice under state law that is a proper subject of inquiry by the attorney general and reporter, or has reasonable cause to believe that it would be in the public interest to conduct an investigation to ascertain whether a person is engaging in, has engaged in, or is about to engage in such act or practice, then the attorney general and reporter may:

(1) Require a person with information relevant to the subject matter of the investigation to file a statement or report in writing, under oath or otherwise, as to all the facts and circumstances concerning the alleged violation and to furnish and make available for examination all documentary material and information relevant to the subject matter of the investigation;

(2) Examine under oath a person with information relevant to the subject matter of the investigation; and

(3) Examine or sample all merchandise deemed relevant to the subject matter of the investigation.

(d) Upon a showing by the attorney general and reporter to the circuit or chancery court of the county containing the office from which the attorney general and reporter made or could have made the request pursuant to subsection (a) that the attorney general and reporter has reasonable cause to believe that a person is more

likely than not engaging in, has more likely than not engaged in, or is more likely than not about to engage in an unlawful act or practice under state law that is a proper subject of inquiry by the attorney general and reporter, or has reasonable cause to believe that it would be in the public interest to conduct an investigation to ascertain whether a person is engaging in, has engaged in, or is about to engage in such act or practice; that the persons who are committing, have committed, or are about to commit such acts or practices or who possess the relevant documentary material have left this state or are about to leave this state; and that such an order is necessary for the enforcement of any state law that is a proper subject of inquiry by the attorney general and reporter, the court may order such persons to comply with subsection (a) regardless of whether the attorney general and reporter has made a prior request for information. The court may also, notwithstanding another law, immediately and without notice, forbid the removal from any place, concealment, withholding, destruction, mutilation, falsification, or alteration by any other means of documentary material in the possession, custody, or control of a person believed by the attorney general and reporter to be connected with acts or practices which violate state law that is a proper subject of inquiry by the attorney general and reporter.

AND FURTHER AMEND by adding the following new subsection (k) to SECTION 4:

(k) If a person from whom information has been requested successfully petitions the circuit or chancery court for a protective order setting aside the request made by the attorney general and reporter pursuant to subsection (a), then the court may award the person reasonable attorneys' fees and costs upon a finding that the attorney general and reporter lacked sufficient legal or factual grounds to make the request pursuant to subsection (a).